



GREAT IDEAS

GREAT MINDS

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The judiciary should stay away from resolving cases which have **NEITHER POLITICAL WILL** nor social consensus

The judiciary has become the main arena for resolving contentious disputes that were earlier sorted out on the political stage or in other non-legal spaces. The propensity of politicians to shirk their responsibilities is matched by the willingness of judges to admit these disputes, despite their lack of qualifications to tackle them. This development has worrying implications for the future effectiveness of courts.

In September 2007, Janata Party President Subramaniam Swamy petitioned the Madras High Court to stop a dredging operation on grounds that it would destroy a

Ram Sethu bridge believed to have been built by Lord Rama to cross into Ravana's kingdom. The judges, who were put in the unenviable position of deciding whether a religious story was myth or fact, transferred the case to the Supreme Court which is currently hearing the petitions. Other disputes in the higher courts include political (the claim to the Ayodhya site) and policy concerns (among others, the ambit of affirmative action, admission policies to be adopted for nurseries, begging in public, size of speed-breakers on Delhi roads, overcharging by auto rickshaw drivers).

Why are politicians, political parties, and citizens looking to overburdened courts for

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